

Tahir v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 November 2020 · Writ-C No. 18168 of 2020 · **Writ disposed; licensee directed to consider a clause 6.14 instalment representation in accordance with law.**

HEADNOTE

Where a consumer does not dispute electricity dues and seeks only an instalment facility against a recovery citation, the High Court may dispose of the writ by directing the distribution licensee to consider a time-bound representation under clause 6.14 of the U.P. Electricity Supply Code, 2005 and pass appropriate orders in accordance with law, without quashing the citation or granting instalments itself. Failure to approach the licensee within the time fixed disentitles the consumer to the benefit of the order.

FACTUAL SUMMARY

Tahir petitioned the Allahabad High Court to quash a recovery citation dated 29 November 2019 for Rs. 2,55,735 issued by respondent no. 4 and to restrain coercive action on that citation. He did not dispute the Power Corporation's demand and offered to pay it in easy instalments. Counsel for the distribution licensee (respondent no. 3) stated that under clause 6.14 of the Electricity Supply Code, 2005 the licensee would consider the petitioner's grievance and pass appropriate orders in accordance with law if approached.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility against recovery citation

HOLDING

On an undisputed electricity recovery, a writ seeking instalments may be disposed of by directing the licensee to consider a representation under clause 6.14 and pass orders in accordance with law within a fixed period; the court does not itself grant instalments or quash the citation, and default in approaching the licensee within the time allowed forfeits the benefit of the order. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The Court treated clause 6.14 as the channel for considering an instalment request against an undisputed recovery citation, relegating the consumer to a two-week representation before the licensee and a four-week decision in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY AND QUANTUM OF THE RECOVERY CITATION DATED 29.11.2019

The petitioner did not dispute the amount; the Court did not examine the citation. ¶ 1

NOT DECIDED — WHETHER INSTALMENTS MUST BE GRANTED UNDER CLAUSE 6.14

Left to the licensee to consider in accordance with law. ¶ 1